Privacy Policy

EFFECTIVE AS OF OCTOBER 26, 2020
Welcome to Boomplay.
Boomplay is provided or controlled by TRANSSNET MUSIC LIMITED (hereinafter " **TML** ", " **we** " or " **us** ")
We are committed to protecting and respecting your privacy.
This Privacy Policy (hereinafter the " **Policy** ") sets out the basis on which any personal data we collect from you, or that you provide to us, will be processed by us. Please read the following carefully to understand our views and practices regarding your personal data and how we will treat it. By accessing or using our website, software, services, applications, products and content offered via Boomplay (collectively, the " **Services** "), you are accepting and consenting to the practices described in this Policy.

The Types of Personal Data We Collect and Use

We may collect and use the following information about you:
• **Information you share with us.** This is the information about you or relating to you that is voluntarily shared by you on Boomplay. Information you share with us may include without limitation postings that you make on Boomplay (including your public profile, name, identification number, address, email address, social media login details, telephone number, information about your device, your browsing records, the comments you make on Boomplay, as well as account and billing details, the lists you create, and photos, videos and voice recordings as accessed with your prior consent through your device settings you turn on), any postings from others that you re-post and location data and log data associated with such postings. Information you share with us also includes information about you (including location data and log data) that others who are using Boomplay share about you. Information you share with us will remain publicly-available for so long as you or a user that has shared such information retains it.
• **Information you share from your social networks.** If you choose to link Boomplay to your social network or public forum account (including without limitation Facebook, Twitter or Google account), you may provide us or allow your social network to provide us with information from your social network or public forum accounts. This data may include your use of Boomplay on such public forums and/or social networks. For further information as to how and for what purpose the social network provider processes your data, please see their privacy policies.
• **Information on Your Device.** We automatically collect certain data from you, including IP address or other unique device identifiers such as Google advertising ID, Android ID, Identifier for Advertising, Cookies (as defined below), mobile carrier, time zone and locale setting, operating system and platform, hardware and

software versions, battery level, signal strength, available storage space, browser type, app and file names and types, Bluetooth signals, International Mobile Equipment Identity, International Mobile Subscriber Identity, data from device settings: information you allow us to receive through device settings you turn on, such as access to your GPS location, photos, videos and voice recordings and such other information on your device. Any automated decision-making, including profiling, based on the data automatically collected from you, will solely be used in optimizing the Services and tailoring it to your preferences.

• **Behavioral information we collect about you.** We also collect information regarding your use of the Services, e.g. your comments on Boomplay or any other content that you Posted on or through the Services, views and interactions on Boomplay. In addition, we link your contact or subscriber information with your activity on Boomplay across all your devices using your email or social media log-in details, engagement (including without limitation likes, shares, comments, repeated views) and relate users based on your behavior. Finally, we collect opt-ins and communication preferences.

• **Location data** We may collect and process information about your location, including location information based on your SIM card, IP address or mobile device location settings, and if activated on your mobile device, by use of a Global Positioning System (GPS). We may use such information to provide you with location-based services, such as features, notifications, marketing, or other content that is influenced by your location. If you do not wish to share your GPS location with us, you can switch off GPS functionality on your mobile device.

• **Metadata.** When you Post content, including images, text and audio to Boomplay, you automatically upload certain metadata that is connected to the content. In essence, metadata describes other data and provides information about your content that will not always be evident to the viewer. In connection with your content the metadata can describe how, when and by whom the piece of content was collected and how that content is formatted. It further includes information such as your account name that enables other users to trace back the content to your user account. Metadata will further consist of additional data that you chose to provide with the content, e.g. any hashtags used to mark keywords to the comments.

• **Information from third parties.** We may receive information if you use any of the other websites we operate or other Services we provide. We may also receive information from third parties (such as advertising networks and analytics providers) and from other sources, including business directories and other commercially or publicly available sources.

• **Contact Information.** We may collect contact information from your contact list, address book and your social network to help you and others find people you may know and enable you to link your Boomplay contact list with the contact lists on your device and/or in your account on third party services. We will ask for your consent to access your contact list and address book before doing so. You may at any time allow or disallow us to access your contact list and address book by changing your settings.

• **Third-party Services.** If you create a Boomplay account by connecting with a third-party service, such as Facebook, Google, Instagram, Whatsapp or Email, we may collect information from such third-party service, including without limitation your third-party service user name, gender, profile image, birthday and third-party service contact list.

Cookies

We use cookies and other similar technologies (e.g. web beacons, Flash cookies, App cache, etc.) (“ **Cookies** ”) to enhance your experience using Boomplay. Cookies are small files which, when placed on your device, enable us to provide certain features and functionality.
We use the following Cookies:
• **Strictly necessary Cookies.** These are Cookies that are required for the operation of Boomplay and to keep your account and data safe and secure. They include, for example, Cookies that enable you to log into secure areas of Boomplay.
• **Analytical/performance Cookies.** They allow us to recognize and count the number of visitors and to see how visitors move around Boomplay when they are using it. This helps us to improve the way Boomplay works, for example, by ensuring that users are able to find what they are looking for easily.
• **Functionality Cookies.** These are used to recognize you when you return to Boomplay. This enables us to personalize our content for you, greet you by name and remember your preferences (for example, your choice of language or region).
• **Targeting Cookies.** These Cookies record your visit to Boomplay, the pages you have visited and the links you have followed. We will use this information to make Boomplay and the advertising displayed on it more relevant to your interests. We may also share this information with third parties for this purpose.

If for any reason you wish to not take advantage of Cookies, you may disable Cookies by changing the settings on your browser. However, if you do so, this will affect your enjoyment of Boomplay and we will no longer be able to offer to you personalized content. Unless you opt out of Cookies, we will assume you consent to the use of Cookies.
"Do not track" signals are preferences that users can set on their web browser to limit how their activity is tracked across third-party websites or online services. Boomplay does not respond to "do not track" signals in your web browser.

Analytics information

On Boomplay, we use third-party analytics tools to help us measure traffic and usage trends for the Services. Traffic refers to the different data flows surrounding activities of the users on the Services. These tools, for example, collect information sent by your device or our Services, including the pages you visit, add-ons, and other information that assists us in improving the Service. The information will be

used to report and evaluate your activities and patterns as a user of Boomplay to provide services in accordance with these activities.

How We Use Your Personal Data

We will use the information we collect about you in the following ways:
• To administer Boomplay (i.e. to provide our Services to you) and for internal operations, including troubleshooting, data analysis, testing, research, statistical and survey purposes (i.e. to guarantee Boomplay's stability and security) and to solicit your feedback;
• To allow you to participate in interactive features of Boomplay, when you choose to do so;
• To personalize the content you receive and provide you with tailored content that will be of interest to you;
• To improve and develop Boomplay and conduct product development;
• To measure and understand the effectiveness of our recommendation and service we offer to you and others;
• To provide you with tailored services based on the country settings you have chosen, such as recommendations and other content that is related to the country settings;
• To make suggestions and recommendations to you and other users of Boomplay about goods or services that will interest you or them;
• To allow other users to identify you as a user of the Service and to support the socializing function of the Services;
• To provide you with your profile information to send to anyone you choose and to enable you to participate on Boomplay and interact with other users;
• To make your information available to other users in accordance with the privacy settings you chose for the respective information;
• To show you content that is similar to content you liked or interacted with (by commenting and/or watching the content), content from your region as well as content from users you follow;
• To promote the Services and use information that you give to us, such as content which you choose to Post on or through the Services, as part of our advertising and marketing campaigns to promote the Services;
• To enable our messenger service to function;
• To verify accounts and activity, combat harmful conduct, detect and prevent spam and other bad experiences, maintain the integrity of Boomplay, and promote safety and security on and off of Boomplay;
• To notify you about changes to our Services;
• To communicate with you;
• To provide you with user support;
• To enforce our terms, conditions and policies;
• For any other specific reason provided to you at the time we collect your information.
It is in our legitimate interest to promote the Services, and we may use information that you give to us, such as content that you choose to Post on or through the

Services, as part of our advertising and marketing campaigns to promote the Services.

How We Share Your Personal Data

We may share your personal data with selected third parties in or outside your country, including without limitation:
• Our business partners so that we can make you special offers via Boomplay;
• With respect to on-screen ads, advertisers and advertising networks that require the data to select and serve advertisements to you and others. Without your consent, we will not share your contact details to our business partners to avoid direct contact from them, but we may share other information so that they can make you offers tailored to your requirements;
• Cloud storage providers to store the information you provide and for disaster recovery services, as well as for the performance of any contract we have entered into with you;
• Analytics and search engine providers that assist us in the improvement and optimization of Boomplay.
• IT service providers that help develop, maintain, secure and optimize the Boomplay framework;
• Our data center and the servers of our host providers.
We may share your information with any member or affiliate of our group, which includes our subsidiaries, our ultimate holding company and its subsidiaries, and companies that we control, are controlled by or under common control, and our service providers and strategic business partners, and their respective subsidiaries, in each case in or outside your country, for the purposes set out above (" **How We Use Your Personal Data** ").
We may share your information with law enforcement agencies, public or tax authorities or other organizations if legally required to do so, or if we have a good faith belief that such use is reasonably necessary to:
• Comply with a legal obligation, process or request (including tax and related reporting requirements);
• Enforce our Terms of Service and other agreements, policies, and standards, including investigation of any potential violation thereof;
• Detect, prevent or otherwise address security, fraud or technical issues;
• Protect the rights, property or safety of us, our users, a third party or the public as required or permitted by law (including exchanging information with other companies and organizations for the purposes of fraud protection and credit risk reduction).

We may also disclose your information to third parties:
• In the event that we sell or buy any business or assets, in which case we may disclose your data to the prospective seller or buyer of such business or assets; or
• If we sell, buy, merge or partner with other companies or businesses, or sell some or all of our assets. In such transactions, user information may be among the transferred assets. In any such cases, the third party company or business will

adhere to the provisions of this Privacy Policy and where it will result in a change in any of the provisions herein, such changes will be communicated to you and you will be given the chance to consent or opt out at your discretion.

The Security of Your Personal Data

We take steps to ensure that your information is treated securely and in accordance with this policy. Unfortunately, the transmission of information via the internet is not completely secure. Although we will do our best to protect your information, for example, by encryption, we cannot guarantee the security of your information transmitted through Boomplay; thus, any transmission is at your own risk.
We have put in place appropriate technical and organizational measures to ensure a level of security appropriate to the risk of varying likelihood and severity for the rights and freedoms of you and other users. We maintain these technical and organizational measures and will amend them from time to time to improve the overall security of our systems.
We will, from time to time, include links to and from the websites of our partner networks, advertisers and affiliates. If you follow a link to any of these websites, please note that these websites have their own privacy policies and that we do not accept any responsibility or liability for these policies. Please check these policies before you submit any information to these websites.

Data Retention

We use the following criteria to determine the period for which we will keep your information:
• Our contractual obligations and rights in relation to the information involved;
• Legal obligation(s) under applicable law(s) and regulations to retain data for a certain period of time;
• Statute of limitations under applicable law(s);
• Our legitimate business purposes;
• Disputes or potential disputes.
After you have terminated your use of our Services, we can store your information in an aggregated and anonymized format. Notwithstanding the foregoing, we can also retain any personal information as reasonably necessary to comply with our legal obligations, allow us to resolve and litigate disputes, and to enforce our agreements.

Information Relating to Children

The Services are not offered to children whose age makes it illegal to process their personal data or requires parental consent for the processing of their personal data under any applicable laws.
We do not knowingly collect personal data from children under 13 years or under the applicable age limit in your jurisdiction (the “Age Limit”). If you are under the

Age Limit, please do not use the Services, and do not provide any personal data to us.
If you are a parent of a child under the Age Limit and become aware that your child has provided personal data to us, please contact us at privacy.boomplay@transsnet.com to delete such data.
If we are aware that we have collected the personal data of a child under the Age Limit, we will take reasonable steps to delete the personal data.

Complaints

In the event that you wish to make a complaint about how we process your personal data, please contact us in the first instance at privacy.boomplay@transsnet.com and we will endeavor to deal with your request as soon as possible. This is without prejudice to your right to launch a claim with your data protection authority or follow the dispute resolution process provided in the Terms of Service.

Changes

We may amend and update this Policy from time to time. You can access the latest version of this Policy on Boomplay. It is your responsibility to remain informed of any changes. Your continued access to or use of the Services after the date of the updated Policy constitutes your acceptance of the updated Policy. If you do not agree to the updated Policy, you must stop accessing or using the Services.

Contact

Questions, comments and requests regarding this policy are welcomed and should be addressed to privacy.boomplay@transsnet.com.

Your rights

You have the right to make a request to access and delete the personal data we hold about you, to rectify any personal data held about you that is inaccurate, the right to data portability and the right to request the suspension of the processing of your personal data. You can exercise your rights by contacting us at privacy.boomplay@transsnet.com.

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